

Multiple Choice (10 marks)

1. Which of the following most accurately describes Hart's response to Fuller's argument concerning the invalidity of Nazi law?
 - (a) The Nazi law in question was validly enacted.
 - (b) The Nazi rule of recognition was unclear.
 - (c) Hart agreed with Fuller's argument.
 - (d) The court misunderstood the legislation.
 - (e) Fuller misconstrued the purpose of the law.
2. Is the unlawful homicide committed by Minister of country X abroad an act *jure imperii* or *jure gestionis*?
 - (a) Such conduct is a public act but is shielded by immunity
 - (b) Such conduct is a private act but is not shielded by immunity
 - (c) Such conduct is a public act and does not attract immunity
 - (d) Such conduct is a public act (*jure imperii*)
 - (e) Such conduct is a private act (*jure gestionis*)
3. Kelsen's theory of law is called pure theory because Kelsen :
 - (a) Purely discussed jurisprudence only
 - (b) Defined law in according with morality and purity
 - (c) Separated law from religion, ethics, sociology and history
 - (d) Discussed law purely in terms of justice
4. Termination of a parent's custody rights and also termination of welfare benefits both require what type of process?
 - (a) Prior screening by neutral fact finder
 - (b) Prior screening, notice and opportunity to respond
 - (c) Prior notice and prior evidentiary hearing
 - (d) Prior notice and immediate termination
 - (e) Immediate termination without notice
5. Which of the following purposes does the 'internal point of view' play in Hart's concept of law?
 - (a) It distinguishes social rules from mere group habits.

- (b) It defines the judicial function.
- (c) It illustrates the authority of the legislature.
- (d) It stresses the relationship between law and justice.

True / False (10 marks)

Answer True or False

- 6. True or False: Defining the limits of government power is not considered a primary function of the law within constitutional law frameworks.
- 7. True or False: According to Austin, law is characterized by command, sovereignty, and the provision of legal remedy.
- 8. True or False: Formalism allows for significant moral considerations to influence judicial decision-making in legal reasoning.
- 9. True or False: A contract for the sale of illegal substances, such as heroin, is considered void and cannot be enforced under contract law.
- 10. True or False: Aristotle claimed that natural law is solely derived from divine commands rather than human nature.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss Catharine MacKinnon's argument that power dynamics between men and women shape societal structures. How does the view that power is based on individual strength contradict her perspective?
- 12. Discuss the principal differences in Hobbes' and Locke's views on life prior to the social contract, and analyze how these perspectives influence their respective theories of government.

End of Paper